

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #09	CCRB Case #: 201601011	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 01/30/2016 9:30 PM	Location of Incident: Lenox Avenue and West 145th Street	18 Mo. SOL 7/30/2017	Precinct: 32
Date/Time CV Reported Sat, 01/30/2016 10:20 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/08/2016 11:13 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Brian Holshek	05550	944657	GANG M
2. DT3 David Kantor	00532	941986	GANG M
3. DT3 Brian Kusterer	4667	935139	GANG M

Officer(s)	Allegation	Investigator Recommendation
A . SGT Brian Holshek	Abuse: Sergeant Brian Holshek stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . DT3 Brian Kusterer	Force: Detective Brian Kusterer used physical force against § 87(2)(b)	B . Unsubstantiated
C . SGT Brian Holshek	Abuse: Sergeant Brian Holshek searched § 87(2)(b)	C . Unsubstantiated
D . SGT Brian Holshek	Abuse: Sergeant Brian Holshek frisked § 87(2)(b)	D . Substantiated
E . DT3 Brian Kusterer	Abuse: Detective Brian Kusterer refused to provide his name to § 87(2)(b)	E . Unsubstantiated
F . SGT Brian Holshek	Abuse: Sergeant Brian Holshek searched the vehicle in which § 87(2)(b) was an occupant.	F . Substantiated
G . SGT Brian Holshek	Abuse: Sergeant Brian Holshek threatened to arrest § 87(2)(b)	G . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 30, 2016, § 87(2)(b) filed this complaint with the Internal Affairs Bureau, generating IAB log number 2016-3882. On February 8, 2016, IAB forwarded this complaint to the CCRB.

On January 30, 2016, at approximately 9:40 p.m., § 87(2)(b) was driving a rented car when he was pulled over at the intersection of Lenox Avenue and West 145th Street in Manhattan by Sgt. Brian Holshek, Det. David Kantor, and Det. Brian Kusterer of Manhattan Gang Squad for running a stop sign (**Allegation A**). Det. Kantor asked § 87(2)(b) for his license and registration and said he was pulled over because he ran a stop sign, which § 87(2)(b) disputes. The officers asked § 87(2)(b) to exit his vehicle and § 87(2)(b) stated that he did not give the officers consent to search his vehicle. Det. Kusterer reached through the front driver side window, unlocked and opened the door, and pulled § 87(2)(b) out of the vehicle. Det. Kusterer then allegedly pulled § 87(2)(b)'s arms behind his back, pushed them upwards, and placed his chest against the car (**Allegation B**). Det. Kantor allegedly searched § 87(2)(b)'s pants pockets and frisked his jacket pockets (**Allegations C and D**). § 87(2)(b) asked Det. Kusterer for his name and, in response, Det. Kusterer told § 87(2)(b) that he should have more respect for the sergeant and allegedly did not provide his name (**Allegation E**). Det. Kusterer searched § 87(2)(b)'s vehicle (**Allegation F**) and recovered no contraband. Sgt. Holshek allegedly told § 87(2)(b) that he would arrest him if he claimed that the officers planted something in the vehicle (**Allegation G**). § 87(2)(b) was not placed under arrest and was released without being issued a summons.

There is no video footage in this case.

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) during his telephone statement on February 9, 2016. § 87(2)(b) was unsure of whether he wanted to mediate this complaint and asked for time to consult with his brother and his family. Mediation was offered to § 87(2)(b) again during his CCRB interview on February 29, 2016. § 87(2)(b) rejected mediation. § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of April 11, 2016, § 87(2)(b) has not filed a notice of claim in regards to this incident (Board Review 02).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b) is named as a participant (Board Review 03).
- Sgt. Brian Holshek has been a member of the NYPD for eight years and has 30 prior CCRB allegations involving 11 cases with two substantiated allegations (Board Review 04).
 - In case number 201110762, Sgt. Holshek was the subject of Abuse – Vehicle Stop and Abuse – Frisk allegations, both of which were closed as substantiated. The CCRB recommended charges for the vehicle stop and command discipline for the frisk. The NYPD recommended that no disciplinary action be taken for either of these allegations.

- Sgt. Holshek was the subject of Abuse – Vehicle Stop allegations in case numbers 201110386 (complainant uncooperative) and 201110762 (substantiated – charges).
- Sgt. Holshek was the subject of Abuse – Frisk allegations in case numbers 200905351 (exonerated), 201110386 (complainant uncooperative), 201110762 (substantiated – command discipline; no disciplinary action taken), and 201114875 (unsubstantiated/victim uncooperative).
- Sgt. Holshek was the subject of two Abuse – Search allegations in case number 201114875 (unsubstantiated/victim uncooperative).
- Sgt. Holshek was the subject of Abuse – Vehicle Search allegations in case numbers 200914689 (unsubstantiated) and 201110386 (complainant uncooperative).
- Det. Brian Kusterer has been a member of the NYPD for 11 years and has four prior CCRB allegations involving four cases with no substantiated allegations (Board Review 05).
 - Det. Kusterer was the subject of a Force – Physical Force allegation in case number 201403972. This case was closed as complainant uncooperative.
 - Det. Kusterer was the subject of an Abuse – Refusal to Provide Name/Shield allegation in case number 201403567. This allegation was closed as unsubstantiated.
- Det. David Kantor has been a member of the NYPD for nine years and has no prior CCRB allegations (Board Review 06).

Potential Issues

- § 87(2)(b) stated that his girlfriend was on speakerphone throughout the incident and that she heard some of the officers' statements, but he refused to identify her or provide any of her contact information until he consulted with her and she agreed to participate in this complaint. On March 17, 2016, a follow-up call was made to § 87(2)(b) who stated that he had not yet discussed this case with his girlfriend and that he was still unwilling to provide her contact information. On April 20, 2016, a call was made to § 87(2)(b) and a voicemail was left. To date, § 87(2)(b) has not contacted the undersigned to provide contact information for his girlfriend. This case is therefore being closed without a statement from § 87(2)(b)'s girlfriend, who remains unidentified.

Findings and Recommendations

Explanation of Subject Officer Identification

- It is undisputed that Sgt. Holshek authorized the stop of § 87(2)(b)'s vehicle. § 87(2)(b) stated that either Det. Kantor or Det. Kusterer frisked him and searched his pockets, and that both of them searched his vehicle. Det. Kantor denied frisking and searching § 87(2)(b) however Sgt. Holshek stated that he observed Det. Kantor frisk § 87(2)(b). All three officers stated that Det. Kusterer searched § 87(2)(b)'s vehicle. § 87(2)(g)
 [REDACTED]
 [REDACTED]
 [REDACTED]
- Det. Kusterer acknowledged being the officer who removed § 87(2)(b) from his vehicle. § 87(2)(g)
 [REDACTED].

Allegations Not Pledged

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A – Abuse of Authority: Sergeant Brian Holshek stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B – Force: Detective Brian Kusterer used physical force against § 87(2)(b)

Allegation C – Abuse of Authority: Sergeant Brian Holshek searched § 87(2)(b)

Allegation E – Abuse of Authority: Detective Brian Kusterer refused to provide his name to § 87(2)(b)

Allegation G – Abuse of Authority: Sergeant Brian Holshek threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that he was pulled over for reasons unbeknownst to him and that the officers explained to him that he ran a stop sign, which he denied. § 87(2)(b) was not issued a summons. § 87(2)(b) alleged that after he exited his vehicle, either Det. Kantor or Det. Kusterer placed his wrists together, pushed his arms into his back and upwards, pushed him towards the car, and placed his chest against the driver side of his vehicle. This officer then allegedly searched inside § 87(2)(b)'s right and left pants pockets. § 87(2)(b) asked this officer for his name and the officer allegedly told him in response that he should “have more respect for the sergeant.” As Det. Kusterer was searching § 87(2)(b)'s vehicle, Sgt. Holshek allegedly told § 87(2)(b) “I dare you to say that we’re gonna plant something in your car. I will arrest you so fast.”

§ 87(2)(g) [REDACTED]. The officers stated that they pulled § 87(2)(b) over because they observed him run a stop sign at West 142nd Street and Chisum Place and that they used their discretion to let § 87(2)(b) go with a warning. Det. Kusterer acknowledged that he was the officer who removed § 87(2)(b) from his vehicle and stated that he did not put § 87(2)(b)'s arms behind his back, push § 87(2)(b)'s arms up towards his shoulders while they were behind his back, or place § 87(2)(b)'s chest against the vehicle. Sgt. Holshek and Det. Kusterer did not recall observing Det. Kusterer pushing § 87(2)(b)'s arms up towards his shoulders while they were behind his back, or placing § 87(2)(b)'s chest against the vehicle. Det. Kantor and Det. Kusterer both denied entering § 87(2)(b)'s pockets and did not recall any other officer doing so, and Sgt. Holshek stated that no officer entered § 87(2)(b)'s pockets. Det. Kusterer stated that § 87(2)(b) did not ask him for his name and that he did not hear § 87(2)(b) ask any other officer for his name. Det. Kantor did not know whether § 87(2)(b) asked him for his name and denied refusing to provide his name to § 87(2)(b). Sgt. Holshek stated that at no point did Det. Kantor or Det. Kusterer refuse to provide his name to § 87(2)(b). Sgt. Holshek denied saying, “I dare you to say we’re gonna plant something in your car. I will arrest you so fast,” and threatening to arrest § 87(2)(b) and Det. Kantor and Det. Kusterer denied hearing Sgt. Holshek make this statement or threaten to arrest § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, C, E, and G** be closed as **unsubstantiated**.

Allegation D – Abuse of Authority: Sergeant Brian Holshek frisked § 87(2)(b)

Allegation F – Abuse of Authority: Sergeant Brian Holshek searched the vehicle in which § 87(2)(b)
was an occupant.

§ 87(2)(b) stated that after his arms were pulled behind his back and his chest was placed against his vehicle, an officer patted the exterior of his jacket pockets. § 87(2)(b) was not sure which officer frisked him, but he knew that it was not Sgt. Holshek and he believed that it was the same officer who pulled his arms behind his back. § 87(2)(b) did not recall what he was carrying in his pockets, but noted that he did not have any knives, guns, or weapons on his person. § 87(2)(b) moved to the rear of his vehicle and Sgt. Holshek told him that the officers were going to search the vehicle because he was under the impression that § 87(2)(b) was in possession of drugs or weapons. Either Det. Kantor or Det. Kusterer entered the driver door of § 87(2)(b)'s vehicle and searched the vehicle. § 87(2)(b) did not know whether both Det. Kantor and Det. Kusterer entered his vehicle, but he knew that at least one of them entered, and that Sgt. Holshek never entered the vehicle. The officer(s) searched the driver and passenger sides of the vehicle. § 87(2)(b) did not observe the officer(s) enter any compartments. The officer(s) searched § 87(2)(b)'s vehicle for at least one minute and located no contraband.

Each of the officers stated that while § 87(2)(b) was still in his vehicle, Det. Kantor observed § 87(2)(b) place an item under his leg or seat. Det. Kantor was the only officer who made this observation. Det. Kantor stated that he did not know what this item was and did not observe this item. Det. Kantor believed this item could have been a weapon, but added that he had “no idea” what the item was. Det. Kantor could not describe this item in any manner whatsoever. When Det. Kantor was asked what caused him to believe this item could have been a weapon, Det. Kantor replied, “I don’t know if it was a weapon.” § 87(2)(b) caused Det. Kantor to fear for his safety because this item could have been a weapon. Aside from this motion, Det. Kantor did not have a reason to believe that § 87(2)(b) was armed. Det. Kantor did not observe any contraband in § 87(2)(b)'s vehicle. The officers ordered § 87(2)(b) to exit his vehicle because it appeared as though § 87(2)(b) was hiding something from the officers. After § 87(2)(b) exited the vehicle, he caused Det. Kantor to fear for his safety because he was “fidgety.” When pressed for more details about what § 87(2)(b) was doing, Det. Kantor stated that he did not recall exactly what § 87(2)(b) was doing. Det. Kantor believed § 87(2)(b) put his hands in his pockets. Det. Kantor did not know whether § 87(2)(b) was ordered to remove his hands from his pockets. Det. Kantor did not know whether he observed any bulges on § 87(2)(b)'s person. To his knowledge, Det. Kantor had no reason to believe that § 87(2)(b) had a weapon on his person after he exited his vehicle. Det. Kantor did not know whether any officer indicated to him that he observed a bulge on § 87(2)(b)'s person. Det. Kantor did not recall any officer indicating that he observed an item on § 87(2)(b)'s person that appeared to be a weapon. Det. Kantor did not recall § 87(2)(b) being frisked and did not recall frisking § 87(2)(b) himself. While Det. Kantor and Sgt. Holshek were at the rear of § 87(2)(b)'s vehicle with § 87(2)(b)

Det. Kusterer was inside § 87(2)(b)'s vehicle searching the area where § 87(2)(b) was seated to find what § 87(2)(b) was hiding.

Det. Kusterer stated that he did not observe § 87(2)(b) place any item under his leg or seat and did not have any reason to believe that § 87(2)(b) was armed after he exited his vehicle. Det. Kusterer did not frisk § 87(2)(b) or observe any officer frisk § 87(2)(b). Det. Kantor and Sgt. Holshek did not tell Det. Kusterer that they frisked § 87(2)(b) but he assumed that they did because Det. Kantor and Sgt. Holshek said they were “good to go” once the vehicle search was completed. Det. Kusterer stated that it was procedure to frisk and search § 87(2)(b) to make sure he did not have a weapon. Det. Kusterer searched the area where § 87(2)(b) was seated in his vehicle. Det. Kusterer did not ask § 87(2)(b) for his consent to search the vehicle and did not know whether § 87(2)(b) volunteered his consent for the officers to search the vehicle. Det. Kusterer did not hear any other officer request § 87(2)(b)'s consent to search the vehicle. Det. Kusterer searched wherever § 87(2)(b) could lunge in the vehicle. This included the driver seat, the center console, and behind the driver seat. Det. Kusterer opened the center console, which contained nothing. Det. Kusterer did not remove any items from the center console and did not open any other compartments. Det. Kusterer did not observe § 87(2)(b) open the center console at any point. Det. Kusterer also opened the vehicle's rear driver side door so he could see behind the driver seat. Det. Kusterer did not believe he opened any of the other doors and did not open the trunk.

Sgt. Holshek stated that he did not recall whether he observed any bulges on § 87(2)(b)'s body after he exited the vehicle. When asked whether he had any reason to believe that § 87(2)(b) was armed after he exited the vehicle, Sgt. Holshek stated that Det. Kantor had indicated to him that he observed a bulge on § 87(2)(b)'s person as § 87(2)(b) was stepping out of the vehicle. Sgt. Holshek did not recall whether Det. Kantor stated where he observed this bulge. Sgt. Holshek did not recall where on § 87(2)(b)'s body this bulge was located. After frisking § 87(2)(b), Det. Kantor told Sgt. Holshek that the bulge appeared to be formed by a firearm. Det. Kantor did not state the shape or dimensions of the bulge. Sgt. Holshek did not observe this bulge himself. Det. Kantor frisked § 87(2)(b) in the street at the rear of the vehicle. Sgt. Holshek was at the rear of the vehicle with § 87(2)(b) and Det. Kantor when § 87(2)(b) was frisked. § 87(2)(b) was not facing Sgt. Holshek. Sgt. Holshek did not direct Det. Kantor to frisk § 87(2)(b). At the time, Det. Kusterer was in the driver seat of § 87(2)(b)'s vehicle looking around and underneath the driver seat for contraband and weapons. Sgt. Holshek did not observe Det. Kusterer reach into any compartments such as the center console. Sgt. Holshek stated that Det. Kusterer believed that there was contraband or weapons in the vehicle because of § 87(2)(b)'s initial actions, and Det. Kantor's observation of § 87(2)(b) placing his hand under his seat or leg. Sgt. Holshek did not instruct Det. Kusterer to search the vehicle and did not tell him to not search the vehicle. Sgt. Holshek did not request § 87(2)(b)'s consent to search the vehicle and did not recall whether any other officer did so. Sgt. Holshek did not recall whether § 87(2)(b) volunteered his consent for the officers to search his vehicle. Sgt. Holshek did not believe he needed § 87(2)(b)'s consent to search the vehicle in order to ensure the officers' safety because Det. Kantor articulated that he saw § 87(2)(b) reach under the seat. At the time, Sgt. Holshek was aware that Det. Kusterer was searching the vehicle.

In order to frisk an individual, an officer must have reasonable suspicion to believe that the individual is armed (People v. DeBour, 40 N.Y.2d 210, 1976). Under the general automobile exception, an officer must have probable cause to believe that a vehicle contains evidence or

contraband in order to conduct a warrantless search of the vehicle. Officers may also conduct a limited search of a vehicle to retrieve a weapon if they reasonably believe that the weapon poses an immediate threat to their safety. Once the individual has been removed from the vehicle and no longer has access to the weapon inside the vehicle, this exception no longer applies (People v. Torres, 74 N.Y.2d 224, 1989). DeBour also holds that assessing the reasonableness of a search or seizure requires weighing the government's interest against the encroachment into the individual's right to privacy and personal security. First, one must consider whether or not the search or seizure was "justified in its inception." Second, one must consider whether or not the search or seizure was "reasonably related to in scope to the circumstances which rendered its initiation permissible." See Board Review 07.

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED] it is recommended that **Allegations D and F** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b) [REDACTED]

§ 87(2)(g), § 87(4-b)

Squad: 9

Investigator: _____
Signature Print Date

Squad Leader: _____
 Title/Signature Print Date

Reviewer: _____

Title/Signature Print Date